

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a**

national report on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: The Netherlands

Organization or entity responsible for the preparation of the report: Ministry of Education, Culture and Science

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☒ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☒ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☐ Policies and programmes aim to eliminate and prevent discrimination in education
- ✓ Access to justice in case of violations of the right to non-discrimination in education
- ✓ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of pupils to educational institutions*

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

→ *Non-differential treatment, including of foreign nationals resident in your country*

- Within education, the inspectorate checks the social safety at school. A school is obliged to pass on the monitoring data to the inspectorate. This is aimed at preventing bullying and discrimination.
- New citizen bill for primary and secondary education, which is a tightening of the curriculum. This amendment to the legal provisions on citizenship education in primary, special and secondary education ensures that citizenship education becomes 'more compulsory'. This means that the legal rules prescribe that education promotes citizenship and what citizenship education must entail. The bill also creates a duty of care for schools. Schools must ensure that teachers act in accordance with democratic rule of law values. They must also ensure that pupils can practice dealing with these values at school.
- This autumn, a policy agenda to combat segregation in primary and secondary education will be launched. The aim for schools is to become more mixed to foster contact between children with a high socio-economic status and a lower economic status come into contact with each other, thereby aiming to promote increased understanding of one another.
- A disadvantage of this system: schools with a denomination are allowed to refuse children on the basis of faith, which could be argued to be seen as discrimination, despite the freedom of choice in education being a fundamental right in the Netherlands.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ✓ Constitutional laws and/or legislation guarantee equal access to education
- ✓ Regulations ensure equal access to all levels and types of education
- ✓ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- | | |
|--|---|
| ☐ Providing financial incentives and fellowships | ✓ Providing auxiliary assistance |
| ✓ Providing positive or affirmative action measures | ☐ Adapting education infrastructure |
| ✓ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ✓ Training teachers on inclusive education | ✓ Providing language classes to newcomers (e.g. refugees) |
| ✓ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ✓ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ✓ Providing flexible learning pathways |
| ✓ Eliminating all barriers for pregnant girls or young mothers in education | ☐ Valuing diversity in schools |
| ☐ Other: | ✓ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Inequality of opportunities does not have one clear cause, but is influenced by a variety of issues. The Government of the Netherlands aims to offer good education opportunities, especially to children from families with a lower social economic status, for example by:

- An intervention as well as a research focusing on increased time for teachers that work at school where there is a high proportion of disadvantaged pupils to support professionalization of teachers as well as to allow teacher to provide additional guidance to pupils.
- To prohibit schools from excluding pupils from extracurricular activities, even if parents do not pay the voluntary contribution.
- Extra investments in preschool and early childhood education and in the policy for educational disadvantages in primary education.
- Active encouragement of schools to properly guide pupils from vulnerable backgrounds in the transition from primary to secondary education, for example through providing extra classes on the core subjects or additional focus on study skills and self-confidence.
- Statutory right of transfer between different levels of high school (pre-vocational secondary education (VMBO) to senior general secondary education (HAVO), and from HAVO to pre-university education (VWO).
- Collaboration with municipalities through local alliances in the Equal Opportunities Alliance.

The Government of the Netherlands aims to advance gender equality and to ensure

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

empowerment of girls and women by focusing on addressing gender stereotypes and traditional gender norms through education. Several alliances have been put in place, as well as subsidies and programs to foster diversity and inclusion and raise awareness of harmful gender stereotyping in education. These include specific measures to increase the proportion of girls that choose to enrol in technical studies, as well as bringing professionals in the education sector together to discuss the unintended effects of gender stereotypes on the development of pupils.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

The law on marriage in the Netherlands requires both partners to be at least 18 years old. If someone under 18 marries (or has married) abroad, the government will not recognize the marriage until both partners have reached the age of 18 (Forced Marriage Prevention Act, adopted in 2015).

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

School in the Netherlands is not compulsory until the age of 5.

☒ Pre-primary education is free of charge for all: Please provide the duration:

Primary school (4 – 12 yrs).

At the age of 4 all children have the right to go to primary school. From the age of 5, school is compulsory for all children. Primary school is free of charge. Primary schools with a population of children who are at risk of disadvantage, receive extra money from the government to offer them extra learning support.

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

Early childhood education and care (ECEC) for children of working parents (2,5 - 4 years)

Early childhood education/pre-primary education in the Netherlands is meant for children from 2,5 – 4 years old, who are at risk of disadvantage. Early childhood education/pre-primary education is provided at childcare centers. It is subsidized by local governments. There are no extra costs for parents involved.

Local governments are responsible for providing early childhood education/pre-primary education to all children from age 2,5 - 4, who are at risk of deprivation, in their municipality. The local government decides which children apply for early childhood education/pre-primary education at the childcare centers. Their decisions are based on national data of children who are at risk of disadvantage.

The Dutch government stimulates the use of childcare for children from age 0 - 4 by granting working parents income-related subsidies. The level of the subsidies varies between 33,3% and 96% of total costs.

ECEC for children of parents who are not able to care for their children due to a social or medical reason (2,5 – 4 years)

Parents who don't apply for the income related government subsidy, but who are not able to support their children by reasons of medical or social origin, may approach the local government to receive a compensation. The local government decides which parents apply for the compensation and how they are served best.

ECEC for children of non-working parents (2,5- 4 years)

In addition, children of non-working parents are allowed to use facilities for childcare and early education/pre-primary education. They also can apply for a local government subsidy.

ECEC for disadvantaged children (2,5-4 years)

In addition to child care, early childhood education/pre-school education is offered to disadvantaged children from the age of 2,5 - 4 years old. The local governments receive money to offer early childhood education/pre-school education for free. In most cases local governments ask for a small contribution in addition. Local government decides which children suit the definition of 'disadvantaged'.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Dutch policy is aimed at ensuring that all children who are at risk of disadvantage participate in preschool education. This is stipulated in the Primary Education Act, Articles 166 and 167. More than 80% of the children who are at risk of disadvantage participate in preschool education.

The policy mainly focuses on improving the quality of preschool education. A statutory decree describes quality requirements that preschool education must meet, see: 'Decree on basic conditions for quality preschool education',
<https://wetten.overheid.nl/BWBR0027961/2020-08-01>

To increase quality, from 1 August 2020, municipalities must expand the number of hours of pre-school education from a minimum of 10 to an average of 16 hours per week. In addition, from January 1, 2022, municipalities must deploy a pedagogical employee at the location for at least 10 hours per year for each target group child.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

- Is primary education compulsory in your country?

✓ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Law of compulsory education since 1969.

Education is compulsory from the age of 5 to 16. Most children in the Netherlands start their education at the age of 4 at primary school.

- Is primary education available free of charge to all?

✓ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

See art. 40 par.1 Primary Education Act:

Article 40. Admission and removal of pupils

1. The decision regarding admission and removal of students is the responsibility of the competent authority. Admission to the school does not depend on lawful residence as per Article 8 of the Immigration Law (2000). Admission may not be subject to financial contribution from parents.

There are no school fees charged to parents for primary education. However, school may ask parents for a voluntary contribution towards the costs of extracurricular activities.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

✓ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

See art. 27 par. 2 WVO: Admission is not dependent on any contribution other than a contribution regulated by, or pursuant to, the law.

In addition, an initiative law has recently been passed. On the basis of this law, schools – also for the extracurricular part of the educational program – are no longer allowed to exclude children whose parents did not pay the voluntary parental contribution from extra activities.

For admission to the final exam, see art. 29 WVO / art. 2 Examination Decree WVO.

In principle, state examinations must be paid for, but these are only open to students who do not have the opportunity to take an exam in another way (eg. students whose parents have chosen a certain type of private school). In addition some students at the VSO take part in the state exams but do not pay for it themselves (see art 2. par 5. of the State Examination Decree VO:

5. With regard to candidates coming from a school in respect of which Article 29, par 1a, of the Act has been applied, or an institution for education and vocational education in respect of which Article 6a.2.1 of the Adult and Vocational Education Act as been applied. The amount referred to in the first and second paragraph and paragraph 2a is due by the competent authority of that school or institution.

Teaching material is made available free of charge, see art. 6^e WVO: making teaching materials available to students:

1. The competent authority ensures teaching materials are available to pupils free of charge each school year.
2. Teaching material is interpreted as teaching material that, in form and content, is aimed at the transfer of information in educational learning situations and of which the use within the educational offer has been specifically prescribed by the competent authority for the relevant year.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

✓ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

See par. 2 Compulsory Education Act 1969, in particular Article 3.

The duty of care for appropriate education is of importance in relation to access to secondary education, see art. 27 WVO.

As of 2008, secondary education is compulsory until the age of 18. The enrolment age is 12.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ✓ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

The higher education strategy focuses on impact, innovation and inclusion. Student success should first and foremost focus on the student: students who enter higher education should be enabled to successfully complete their educational program. This breaks with past policy focus on performance output of HEI's. Aim is to capture this in quality assurance with HEI's as policy partners and balance wide accessibility, high quality of education, and high completion rates.

The Dutch higher education system has become increasingly international over the recent years. International students currently constitute over 11% of all students in Dutch public higher education. This is mainly due to the large number of English-taught study programmes that are offered by Dutch universities. In addition, Dutch higher education institutes provide clear and accessible information (in English) on topics related to the study programme, and general information on living as a student in the Netherlands.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

☐ Higher education is generally free of charge

☐ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

✓ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

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2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☒ Provision of literacy programmes

☒ Provision of appropriate learning and life-skills programmes

☒ Provision of free of charge learning opportunities

☒ Provision of flexible learning pathways

☒ Provision of professional training and qualifications

☐ Other:

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- Please elaborate further on the measures taken:

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2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

☒ Establishment of minimum norms and standards in education

- ✓ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ✓ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Article 2 WVO:

1. Secondary education, as referred to in this Act, comprises education provided after primary- and special education. It does not include secondary special education as referred to in the Expertise Centers Act, education and vocational education as referred to in the Adult and Vocational Education and Higher Educational Act.
2. Education is arranged in such a way that the pupils can go through an uninterrupted development process. It is tailored to the progress in the development of the students.

Article 3b WVO: Duty of care for safety at school

For additional support: see art. 17a WVO: partnerships are responsible for distributing and allocating support resources and support facilities.

The funding system in secondary education is being simplified:

“A school receives a fixed amount of money for the main location and a smaller fixed amount for secondary locations. There is a basic rate for pupils in general education and a higher rate for pupils in practical education and in the upper years of vocational education. This was chosen because schools incur less costs for theoretical education. An exception to this is the mixed learning pathway (GL). An additional funding scheme has been drawn up for this. The vocational components make GL more expensive as practical training and upper secondary vocational education. There will also be a separate regulation for isolated schools to compensate for the effects of the shrinkage.”

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ✓ Initial training and continuous professional development is provided
- ✓ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession

- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

Both in the second degree programs and in teacher training programs, attention is paid to diversity and inclusiveness. This is included in the knowledge base in which teacher training courses have agreed with each other what graduated teachers should in any case know and be able to do.

The government is also taking action to increase and improve the intake of students in teacher training courses.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☐ **Curriculum includes human rights education**

☐ **Educational and/or extracurricular activities are organized on human rights education**

☐ **Other:**

Citizenship education is mandatory in the Netherlands and contains human rights and fundamental freedoms. Schools are obliged to focus on enhancing social integration and

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

active citizenship.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

In order to be able to provide education to pupils of compulsory school age, schools must be regarded as school within the meaning of the Compulsory Education Act (stems from the definitions in Article 1 of that Act). The Dutch Inspectorate supervises the Dutch private schools. International private schools (B4) are regulated in the regulations on designating international and foreign schools. These schools are supervised by a foreign power or a recognized accreditation body.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

Requirements are also imposed on these schools, but less than on other schools, because they do not receive funding.

For the requirements for B3 schools, see art. 1a1 Compulsory Education Act 1969. Very few requirements are set for B4 schools due to their international character.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

¹³ See: Article/Paragraph 1(1).

- ☐ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ✓ Teachers are trained to adapt to national minority needs
- ☐ Other:

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

For primary education: art. 9, par 4 (Frisian).

For secondary education: art. 11e WVO (Frisian) and underlying regulations.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

All children in the Netherlands are obliged to attend school from the age of 5 on the basis of the Compulsory Education Act 1969. Education to newcomers is arranged in collaboration with Lowan.

Additional resources are being made available for education to newcomers, for secondary education see eg. the supplementary funding regulations for first assistance to newcomers in

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

the secondary education.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ✓ Inclusion in mainstream education
- ✓ Provision of language courses
- ✓ Specific training for educational staff
- ✓ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ✓ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ✓ Non-formal and/or alternative education programmes
- ✓ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

With regards to financial support, schools for children who have been in the Netherlands for less than two years and who do not have the Dutch nationality receive additional funding. This financial support funding is paid quarterly, to ensure that the money stays with the student as much as possible when he or she has to move.

Refugee and migrant children are generally placed in an international transition class (secondary education) or language class (primary education) for the first two years (non-formal and/or alternative education programs). In these classes the children follow intensive Dutch language classes. In addition, they are taught the functioning of the Dutch school system and get familiarized with the Dutch culture. In secondary education, the international transition class starts with an extensive intake in order to properly assess the level of the student (alternative administrative procedure). The student's development is closely monitored over the course of the international transition class' lessons. On average, pupils transfer to regular education after 1 to 2 years.

There are various post-graduate courses available, allowing teachers to develop expertise in the acquisition of Dutch as a second language (NT2, specific training for educational staff).

Some school employ a buddy system in which students born in the Netherlands are linked to a student from the international transition class. This way they support the student to find his/her way in the regular education and both students learn more about the background and culture of the other (initiatives addressing discrimination and promoting cultural diversity and mutual acceptance).

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ✓ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

There is a considerable shortage of teachers in primary and secondary education. Especially in the large cities, such as Amsterdam, Rotterdam, the Hague and Utrecht it is a challenging problem. Schoolboards and municipalities are provided additional funding to combat the problem.

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages

- X Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- X Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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